Mr Rahul Tandon vs State Of Nct Of Delhi on 22 July, 2024

Author: Subramonium Prasad

Bench: Subramonium Prasad

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* IN THE HIGH COURT OF DELHI AT NEW DELHI

\+ BAIL APPLN. 2180/2024

MR RAHUL TANDON

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STATE OF NCT OF DELHI

Through:

\+ BAIL APPLN. 2181/2024

MR. BHAGMAL TANDON

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STATE OF NCT OFDELHI

Through:

CORAM:

HON'BLE MR. JUSTICE SUBRAMONIUM PRASAD

OR

% 22.07.2024

1. Petitioners have approached this Court seeking bail in FIR No.171/2024 dated 14.03.2024, registered at Police Station Dabri for offences under Sections 420 IPC.

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2. Petitioner in BAIL APPLN. 2180/2024 is the son of Petitioner in BAIL APPLN. 2181/2024.

3. The facts, as stated by the prosecution, are that one Taman Kumar, son of the Petitioner in BAIL APPLN. 2181/2024 and the brother of the Petitioner in BAIL APPLN. 2180/2024, took a house on rent at Flat No.102, J-106, Shri Krishna Apartment, Rajapuri, Uttam Nagar, Delhi. It is stated that he lived in the said house with his parents, two sisters, two brothers, wife and a child. It is stated that Mr. Taman Kumar got acquainted with the Complainant, who was his neighbour. It is stated that in the month of October, 2023 Taman Kumar Tandon took the credit cards of the Complainant and spent about Rs. 14 lakhs from his credit cards and assured the Complainant to pay back the same in November. It is stated that on 15.11.2023 the Complainant went to attend a wedding of his relatives and when he returned he found that the said Taman Kumar Tondon had abandoned the rented accommodation. It is stated that on inquiring about Taman, the Complainant came to know that he has cheated three more persons in the very same manner. Accordingly, the present FIR got registered.

4. It is stated that on 27.03.2024, the Investigating Officer got information from an informer that Taman Tandon's younger brother, i.e. the Petitioner herein in BAIL APPLN. 2180/2024, works in Post Office B1 Janakpuri. It is stated that the Investigating Officer went to the Post Office and apprehended the Petitioner in BAIL APPLN. 2180/2024. It is stated that the Petitioner informed the Police that his brother has fled. It is stated that on the very same day, the father of Taman Tandon, i.e. Petitioner herein in BAIL APPLN. 2181/2024, was also brought to the Police Station. It is the This is a digitally signed order.

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5. Petitioners were arrested on 27.03.2024 and were produced before the learned Metropolitan Magistrate who sent the Petitioner herein in BAIL APPLN. 2180/2024 on 14 days' judicial custody and the Petitioner in BAIL APPLN. 2181/2024 was sent on 1 day's judicial custody. It is stated that no concrete information has been received from the Petitioners. Charge-sheet has been filed.

6. Petitioners have approached this Court for grant of Bail.

7. It is the contention of the learned Counsel for the Petitioners that Petitioners have no role in the commissioning of offence and it was the brother of the Petitioner in BAIL APPLN. 2180/2024 and the son of the Petitioner in BAIL APPLN. 2181/2024, who cheated the complainant and took away his money. He further states that proceedings under Section 283 Cr.P.C have not been initiated against the Petitioners even though there is an allegation that the Petitioners also have fled from the place they were living with the main accused. He states that charge-sheet has been filed and now there is no threat of Petitioners tampering with evidence and, therefore, no purpose would be served in keeping the Petitioner in further incarceration.

8. Per contra, learned APP for the State contends that the main accused is the brother and the son of the Petitioners herein respectively and they might threat the witnesses and, therefore, the

Petitioners ought not be given bail.

9. Heard the Counsels for the parties and perused the material on record.

10. Charge-sheet has been filed and, therefore, the investigation is complete. The offence is one under Section 420 IPC and is not heinous. The This is a digitally signed order.

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11. In Prasanta Kumar Sarkar v. Ashis Chatterjee, (2010) 14 SCC 496, the Supreme Court has laid down the parameters for granting or refusing the grant of bail which are as under:

> "i. whether there is any prima facie or reasonable ground to believe that the accused had committed the offence;
>
> ii. nature and gravity of the accusation; iii. severity of the punishment in the event of conviction;
>
> iv. Danger of the accused absconding or fleeting, if released on bail;
>
> v. character, behavior, means, position and standing of the accused;
>
> vi. Likelihood of the offence being repeated; vii. Reasonable apprehension of the witnesses being influenced; and viii. Danger, of course, of justice being thwarted by grant of bail."

12. Applying the said parameters to the facts of the present case, this Court is of the opinion that it would not be prudent to keep the Petitioners behind bars for an undefined period of time at this stage.

13. In view of the facts and circumstances of the cases, without commenting on the merits of the matter, this Court is of the opinion that the Petitioners cannot be made to languish behind bars for a longer period of time, and that the veracity of the allegations levelled against them can be tested during trial.

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14. Accordingly, this Court is inclined to grant bail to the Petitioners on the following conditions:

a) Each Petitioner shall furnish a security in the sum of 50,000/-

with two sureties of the like amount to the satisfaction of the Trial Court/Duty Magistrate.

b) The Petitioners shall not leave NCT of Delhi without prior permission of the concerned Court.

c) The petitioners are directed to attend all the proceedings before the Trial Court.

d) The Petitioners shall report to the concerned Police Station every Wednesday at 10:30 AM and should be released after completing all the formalities within an hour.

e) The Petitioners are directed to give all their mobile numbers to the Investigating Officer and keep them operational at all times.

f) The Petitioners have given their address in the memo of parties as RZ-77 & 78 Flat No. 302, Sukhi Ram Park, Gali No.5, Uttam Nagar, Delhi. The Petitioners are directed to continue to reside at the same address. In case there is any change in the address, the Petitioners are directed to intimate the same to the IO.

g) The Petitioners shall not, directly or indirectly, tamper with evidence or try to influence the witnesses.

h) Violation of any of these conditions will result in the cancellation of the bail given to the petitioners.

15. It is made clear that the observations made in this Order are only for the purpose of grant of bail and cannot be taken into consideration during the trial.

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16. Accordingly, the bail applications are disposed of along with the pending applications, if any.

SUBRAMONIUM PRASAD, J JULY 22, 2024 Rahul This is a digitally signed order.

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